

Acquitted Physician. Recorded Admission of Fabrication.

Malicious prosecution and § 1983 fabrication of evidence arising from a coached complainant's statement. Acquitted at trial, Binghamton City Court, August 2025. *The one-year state limitation period expires this month.*

PROSPECTIVE CLIENT

Mohammed Faraaz Rahman, MD
Internal medicine · board-eligible

VENUE

N.D.N.Y. / Broome County
Binghamton, New York

DATE

30 July 2026

RELATED PENDING ACTION

Rahman v. UHS, No. 3:26-cv-00197
(N.D.N.Y.) — Douglas W. Drazen, Esq.

Confidential — submitted for the purpose of seeking representation. Transmitted in confidence to counsel under consideration for engagement, with the protections of Rule 1.18 of the New York Rules of Professional Conduct. Contains information about a sealed criminal matter (CPL § 160.50) disclosed by the accused. Prepared by the prospective client with analytical assistance; all legal characterisations are submitted for counsel's independent assessment.

Summary

NOT GUILTY Acquitted at trial, Binghamton City Court, August 2025 — favourable termination established	17 mo Duration of prosecution, during which licensure and employment were unobtainable	\$300K Documented employment contract lost, single line item	\$1988 Fee-shifting available on the federal claims
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A physician completing an internal medicine residency was accused by a woman he had been seeing, on a complaint filed the day after her parents discovered the relationship. He was arrested, prosecuted for seventeen months, and **acquitted at trial**. During the prosecution he could not obtain licensure or employment, and a signed \$300,000 employment contract became unattainable. He held an implanted cardiac defibrillator throughout.

The evidence is unusual in three respects, and each of them is documentary rather than testimonial:

- **An audio recording containing an admission of fabrication** — words to the effect of *"We knew it is false. We framed him."*
- **Video of the complainant's police statement showing her being coached** — apparently by the officer present, and separately by a person on the telephone during the statement itself.
- **A photograph of the complainant at the accused's apartment the day after the alleged incident**, plus a sworn affidavit from an eyewitness present the preceding evening describing her voluntary conduct.

WHY COUNSEL IS BEING APPROACHED NOW

The state-law malicious prosecution period under CPLR § 215(3) runs one year from favourable termination and **expires in August 2026**. The § 1983 claims run three years under *McDonough v. Smith* and remain open until 2028. **The immediate need is a filing against the complaining witness this month**; the federal claims against the officers can be developed at a normal pace thereafter.

What Is Being Proposed

DEFENDANT	CLAIM	IMMUNITY	LIMITATION
The complaining witness <i>private individual</i>	Malicious prosecution; defamation per se	None	August 2026 <i>CPLR § 215(3). No notice of claim — private party</i>
Binghamton police officer(s)	§ 1983 fabrication of evidence; malicious prosecution; denial of a fair trial	Qualified only; fabrication defeats it	August 2028 <i>Exempt from notice of claim per Felder</i>
City of Binghamton	<i>Monell</i> — policy, practice or failure to train	None, but requires a custom	August 2028
Investigative actors, if any <i>pre-probable-cause conduct</i>	§ 1983 fabrication of evidence	Qualified only, per <i>Buckley</i>	August 2028

THE PROSPECTIVE CLIENT'S OWN POSITION ON THE DISTRICT ATTORNEY

Dr. Rahman initially wished to bring malicious prosecution against the District Attorney's office. **He has been advised that *Imbler v. Pachtman* confers absolute immunity on charging and trial advocacy, and he accepts that.** He is *not* asking counsel to plead a barred claim. He is asking whether the coaching visible in the statement video occurred during an investigative phase such that *Buckley v. Fitzsimmons* and *McDonough v. Smith* supply a route — and he understands that the answer may be no, in which case the officers remain the appropriate defendants.

— Two issues counsel should know at the outset

- **No notice of claim was served within 90 days.** General Municipal Law § 50-e relief under subsection (5) would be required for any state-law claim against municipal defendants, within the § 50-i period. The bodycam and statement video are offered as evidence of actual knowledge. The § 1983 claims avoid the issue entirely.
- **A related federal action is pending.** *Rahman v. United Health Services Hospitals, Inc.*, No. 3:26-cv-00197 (N.D.N.Y.), before Judge Brindisi and Magistrate Judge Lovric, alleging national-origin discrimination and tortious interference against his former residency program and four physicians. It is at the post-answer stage under a scheduling order entered 10 April 2026 and has been referred to mandatory mediation. **Coordination with existing counsel, and care with release language, will be required.** Dr. Rahman raises this proactively rather than leaving it to be discovered.

What Is Already In Hand

All items below are in the prospective client's possession or that of his criminal defence counsel. Nothing here depends on discovery.

ITEM	FORM	EVIDENTIARY ROLE
Audio recording containing an admission of fabrication	Audio	Words to the effect of " <i>We knew it is false. We framed him.</i> " Goes to malice and to absence of probable cause. Authentication and speaker identification will be required.
Complainant's police statement, on video	Video	Appears to show the complainant being coached by the officer present and by a person on the telephone during the statement. This is the fabrication claim.
Arrest bodycam footage	Video	Contains references to contacting a physician at the hospital and to "we have doctors at UHS" — relevant to the instigation chain and to the related action.
Photograph of complainant at the apartment	Photo	Dated the day after the alleged incident. Voluntary presence contradicts the complaint's premise.
Eyewitness affidavit	Sworn	Family member present the preceding evening. Describes the complainant's voluntary conduct and a motive for fabrication arising after her parents learned of the relationship.
Verdict of acquittal	Court record	Favourable termination. Certificate of Disposition being obtained from Binghamton City Court; the record is sealed under CPL § 160.50 and is being released by the accused.
Negative hair drug test	Laboratory	Disproves collateral substance allegations circulated during the same period.
Opinion letter of Norman Spencer, Esq., 21 March 2025	Expert opinion	Addresses the effect of the criminal matter on medical licensure and career — the causal bridge from prosecution to economic loss.
Employment contract, \$300,000 per annum	Contract	Signed and rendered unattainable during the prosecution. Quantified special damages.
Financial records with hash-verified chain of custody	Financial	Family support transfers during the period of unemployment, with SHA-256 verification. UNVERIFIED — two figures appear in the client's own records and are being reconciled before disclosure.

Quantified Loss

The distinguishing feature of this matter is not the length of the prosecution. It is that the prosecution destroyed a physician's entry into practice at the precise moment it was beginning — and the loss is documentary rather than speculative.

CATEGORY	AMOUNT	DOCUMENTATION
Lost employment contract	\$300,000	Signed agreement
Lost earnings during prosecution and its aftermath	\$380,000	Market rate; MGMA data
Family financial support during unemployment	reconciling	Bank records, hash-verified
Criminal defence costs	\$35,000+	Attorney invoices
Medical costs, uninsured period	\$40,000	Medical billing
Emotional distress and reputational harm	to be assessed	Medical and psychiatric records; expert testimony
Punitive damages	to be assessed	Audio admission supports the predicate

Figures are the prospective client's working estimates and are submitted for counsel's independent assessment. One line item is being reconciled between two internally inconsistent records before any disclosure is made.

AGGRAVATING FEATURES COUNSEL MAY FIND MATERIAL

- **The complaint was filed the day after the complainant's parents discovered the relationship** — a documented, datable motive for fabrication.
- **The prosecution ran while the client carried an implanted cardiac defibrillator**, placed in February 2024, with a post-operative infection during the same period.
- **The client is an international medical graduate whose immigration status depended on employment** that the prosecution made unobtainable — compounding the loss beyond ordinary lost wages.
- **The acquittal was complete.** There was no plea, no adjournment in contemplation of dismissal, no reduction. A trial verdict of not guilty.

What Is Being Requested

Engagement sought	Contingency representation on the malicious prosecution and § 1983 claims described above, with statutory fees under 42 U.S.C. § 1988 on the federal counts.
Immediate deliverable	A filing against the complaining witness before the August 2026 limitation date . The client understands this may need to be a protective filing refined later.
Admission required	Northern District of New York, or identified local counsel.
Coordination required	With Douglas W. Drazen, Esq., on the pending employment action — release language and claim-splitting in particular.
Available immediately	All evidence listed above; the criminal defence file; and the client, who is not presently employed and can devote full attention to the matter.

WHY THIS CASE MERITS THE CALL RATHER THAN THE INTAKE QUEUE

Most malicious prosecution matters turn on inference about the complainant's state of mind. **This one has a recording in which someone says the accusation was false and that he was framed, and video of the complainant being coached while giving the statement that caused the arrest.** Liability evidence of that character is rare, the acquittal is a clean trial verdict, the economic loss is documented in a signed contract, and the plaintiff is a physician whose career was stopped at its start. **The constraint is time, not merit** — the state-law period closes this month, and the client is approaching several firms simultaneously for that reason alone.

Contact. Mohammed Faraaz Rahman, MD · DrRahman@therahmanfoundation.com

Note on preparation. This summary was prepared by the prospective client with analytical assistance. It is not a legal opinion and does not purport to state the law of the Second Circuit. Case characterisations, limitation calculations, and immunity analysis are submitted for counsel's independent verification. Items marked **UNVERIFIED** are internally inconsistent in the client's own records and are being reconciled before disclosure. Transmitted in confidence under Rule 1.18; no attorney-client relationship is created by receipt.